

MWANGI KAMAU & COMPANY ADVOCATES

Reinsurance Plaza, 4th Floor, Oginga Odinga Street, P.O. Box 2210-40100, Kisumu

Our ref: MK/L/2025/117 Your ref: TBA

12th August 2025

BY HAND AND BY EMAIL

The Directors Otieno & Sons Hardware Limited Shop No. 4, Karanja Plaza Oginga Odinga Street
Kisumu

Dear Sirs,

RE: DEMAND FOR RENT ARREARS AND NOTICE OF INTENTION TO RE-ENTER - SHOP NO. 4, KARANJA PLAZA, KISUMU

We act for Wanjiru Muthoni Karanja, your landlord under the Lease Agreement dated 3rd February 2024 (the "Lease"), on whose instructions we write.

Under clause 3.1 of the Lease you are obliged to pay rent of KSh 120,000 per month, reviewed upwards under clause 3.3 to KSh 128,400 per month with effect from 1st March 2025, in advance on or before the 5th day of each month.

Our client's records show that no rent has been received for the months of May, June, July and August 2025. The arrears as at the date of this letter therefore stand at KSh 513,600, made up of four months at KSh 128,400. Interest continues to accrue on each instalment under clause 3.2 at 14% per annum from its due date, and as at today amounts to KSh 8,935.

Our client further notes that, in breach of clause 5.3 of the Lease, you have permitted a third party trading as Lakeside Paints to occupy the rear third of the Premises since about April 2025 without our client's written consent.

TAKE NOTICE that unless within FOURTEEN (14) DAYS of the date of this letter you:

1. pay the sum of KSh 522,535, being the arrears of rent and the interest accrued to date, into our client's account at Kenya Commercial Bank, Kisumu Branch, account number 1108 445 662; and
2. procure that Lakeside Paints vacates the Premises and confirm to us in writing that it has done so,

our client will, without further reference to you, exercise her right of re-entry under clause 7.1 of the Lease, levy distress for the rent in arrears under the Distress for Rent Act, and institute proceedings for recovery of the arrears, interest, mesne profits and costs on a full indemnity basis.

This letter is written without prejudice to our client's rights, all of which are expressly reserved.

Yours faithfully,

PETER MWANGI KAMAU MWANGI KAMAU & COMPANY ADVOCATES

cc. Client